

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202204496	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/04/2022 11:20 PM	Location of Incident: In front of 419 Vandervoort Avenue	18 Mo. SOL 1/4/2024	Precinct: 94		
Date/Time CV Reported Fri, 07/08/2022 9:56 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 07/08/2022 9:56 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Henry Daverin	00000	945645	094 PCT
2. PO Sebastian Escobar	11099	960503	094 PCT
3. PO Ramaury Rodriguez	19943	964253	094 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Nazmul Ferdous	11255	956641	094 PCT
2. PO Jose Fletesuarez	23171	969700	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Ramaury Rodriguez	Abuse: Police Officer Ramaury Rodriguez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unable to Determine
B . LT Henry Daverin	Abuse: Lieutenant Henry Daverin stopped § 87(2)(b)	B . Within NYPD Guidelines
C . LT Henry Daverin	Abuse: Lieutenant Henry Daverin frisked § 87(2)(b)	C . Substantiated
D . LT Henry Daverin	Abuse: Lieutenant Henry Daverin searched § 87(2)(b)	D . Unable to Determine
E . LT Henry Daverin	Abuse: Lieutenant Henry Daverin searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Within NYPD Guidelines
F . LT Henry Daverin	Discourtesy: Lieutenant Henry Daverin spoke discourteously to § 87(2)(b)	F . Substantiated
G . LT Henry Daverin	Discourtesy: Lieutenant Henry Daverin spoke discourteously to § 87(2)(b)	G . Substantiated
H . LT Henry Daverin	Abuse: Lieutenant Henry Daverin failed to provide § 87(2)(b) with a business card.	H . Substantiated
I . LT Henry Daverin	Abuse: Lieutenant Henry Daverin failed to provide § 87(2)(b) with a business card.	I . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On July 8, 2022, § 87(2)(b) filed this complaint on the CCRB website.

On July 4, 2022, at 11:20 PM, Lieutenant Henry Daverin, Police Officer Ramaury Rodriguez, and Police Officer Sebastian Escobar, all of the 94th Precinct, stopped § 87(2)(b) vehicle in front of 419 Vandervoort Avenue in Brooklyn (**Allegation A – Abuse of Authority – Unable to Determine**). Upon approaching the vehicle, Lt. Daverin stopped § 87(2)(b) (**Allegation B – Abuse of Authority – Within NYPD Guidelines**). Lt. Daverin frisked § 87(2)(b) (**Allegation C – Abuse of Authority – Substantiated**). Lt. Daverin allegedly searched § 87(2)(b) (**Allegation D – Abuse of Authority – Unable to Determine**). Lt. Daverin searched § 87(2)(b) vehicle (**Allegation E – Abuse of Authority – Within NYPD Guidelines**). Lt. Daverin spoke discourteously to § 87(2)(b) and § 87(2)(b) (**Allegations F and G – Discourtesy – Substantiated**). Lt. Daverin did not provide § 87(2)(b) and § 87(2)(b) with business cards (**Allegations H and I – Abuse of Authority – Substantiated**). The officers let § 87(2)(b) and § 87(2)(b) go without making an arrest or issuing a summons.

§ 87(2)(g), § 87(4-b)

This case was originally assigned to Investigator Lydia Woolley and was reassigned to Investigator Edward Tsigel upon her departure from the CCRB.

The investigation received five Body Worn Camera (BWC) videos of this incident (BR 06). There is no additional video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ramaury Rodriguez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) (BR 01) was the driver and § 87(2)(b) (BR 02) was the front passenger of their vehicle. They both stated that § 87(2)(b) did not commit any vehicle traffic law (VTL) violations prior to being pulled over by Lt. Daverin, PO Rodriguez, and PO Escobar.

PO Rodriguez (BR 03) was the driver of the police vehicle and stated that he observed § 87(2)(b) commit a VTL violation while driving near 419 Vandervoort Avenue and he made the decision to stop the vehicle. He did not remember which VTL violation § 87(2)(b) committed.

Lt. Daverin (BR 04) was the front passenger of the police vehicle and stated that he did not remember this incident or the reasons for any of his actions. He did not remember why the officers stopped § 87(2)(b) vehicle, whether he observed § 87(2)(b) commit any VTL violations, or whose decision it was to conduct the vehicle stop.

PO Escobar (BR 05) was the back passenger of the police vehicle and stated that either PO Rodriguez or Lt. Daverin observed § 87(2)(b) commit a VTL violation and made the decision to stop him. PO Escobar did not see the violation being committed or know what the violation was and did not make the decision to stop § 87(2)(b) vehicle.

At 0:00 of PO Rodriguez's BWC video (BR 06), PO Rodriguez is in the driver seat of a police vehicle, waiting at a red light. At 0:12 the light turns green. § 87(2)(b) vehicle is seen driving past the police vehicle and through the intersection and PO Rodriguez follows it. At 0:23, PO Rodriguez turns on the turret lights. At 0:50, PO Rodriguez stops the police vehicle and the officers exit. PO Rodriguez approaches the driver seat of § 87(2)(b) vehicle and Lt. Daverin approaches the passenger side. At 1:03, PO Rodriguez asks § 87(2)(b) for his license and registration and he provides his license. At 1:25, PO Rodriguez asks § 87(2)(b) to step out of the vehicle and he does so. § 87(2)(b) walks to the back of the vehicle. Between 1:35 and 4:30, PO Rodriguez conducts a check for § 87(2)(b) license. At 4:45, Lt. Daverin speaks to § 87(2)(b) and § 87(2)(b) at the back of the vehicle and the officers leave the scene.

PO Escobar's BWC video (BR 06) is consistent with PO Rodriguez's BWC video.

Between 1:30 and 4:45, PO Escobar speaks with § 87(2)(b) and § 87(2)(b) at the back of the vehicle. At 1:58, § 87(2)(b) asks PO Escobar, “You thought I was going fast just now? I tried to make the yellow light.” PO Escobar responds, “Yea.” § 87(2)(b) says, “I’ll be honest, I don’t drive like that.” None of the BWC footage captures § 87(2)(b) driving after he passes the police vehicle at the intersection. It cannot be seen whether § 87(2)(b) commits any VTL violations while driving.

Allegation A is being pled against PO Rodriguez because he stated that he made the decision to stop § 87(2)(b) vehicle himself. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unable to Determine**.

Allegation (B) Abuse of Authority: Lieutenant Henry Daverin stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Lieutenant Henry Daverin frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Lieutenant Henry Daverin searched § 87(2)(b)

Allegation (E) Abuse of Authority: Lieutenant Henry Daverin searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (F) Discourtesy: Lieutenant Henry Daverin spoke discourteously to § 87(2)(b)

Allegation (G) Discourtesy: Lieutenant Henry Daverin spoke discourteously to § 87(2)(b)

Allegation (H) Abuse of Authority: Lieutenant Henry Daverin failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Lieutenant Henry Daverin failed to provide § 87(2)(b) with a business card.

It is undisputed that once the officers stopped the vehicle, Lt. Daverin instructed PO Rodriguez and PO Escobar to take § 87(2)(b) out of the vehicle and they did so. Lt. Daverin instructed § 87(2)(b) to exit the vehicle and frisked him. Lt. Daverin then searched § 87(2)(b) vehicle and let § 87(2)(b) and § 87(2)(b) go without issuing a summons and without providing a business card.

§ 87(2)(b) (BR 02) stated that he had his phone, wallet, keys, and nothing else in his pockets and did not remember which pockets they were in. After Lt. Daverin frisked him, Lt. Daverin placed his hands inside either one or both of his pant pockets and searched them.

§ 87(2)(b) (BR 01) did not see Lt. Daverin frisk or search § 87(2)(b) because he was on the other side of the vehicle. § 87(2)(b) told him that he was frisked and searched by Lt. Daverin after the incident concluded.

At 0:55 of Lt. Daverin’s BWC video (BR 06), Lt. Daverin approaches the passenger side of the vehicle. At 1:08 Lt. Daverin points his flashlight through the back seat window. At 1:20, Lt. Daverin points to § 87(2)(b) and tells PO Rodriguez, “Take him out, open container in the car. Take him out real quick.” At 1:42, Lt. Daverin tells § 87(2)(b) to step out of the car and he does so. At 1:54, Lt. Daverin frisks § 87(2)(b) entire body. Lt. Daverin’s hands are not seen the entire time and it is unclear whether he enters any of § 87(2)(b) pockets. Between 2:15 and 4:45, Lt. Daverin searches the entire cabin of the vehicle. At 3:30, Lt. Daverin picks up an open container of Hennessy Cognac alcohol. At 4:45, Lt. Daverin tells § 87(2)(b) and § 87(2)(b) that they have an open bottle of alcohol in the back of the car but he is going to give them a break. Lt. Daverin tells § 87(2)(b) and § 87(2)(b) “With that courtesy that we give you guys we still gotta do our job and make sure there is nothing fucking crazy in there before we do that.” Lt. Daverin tells them that they are free to leave and then the officers leave the scene. Lt. Daverin does not offer either § 87(2)(b) or § 87(2)(b) a business card.

Lt. Daverin (BR 04) did not remember why the officers took § 87(2)(b) and § 87(2)(b) out of the vehicle or why he frisked § 87(2)(b). He did not remember if he feared for his safety or

whether he believed that § 87(2)(b) was armed with a weapon. He did not remember whether he searched § 87(2)(b) pockets. He did not remember why he searched the vehicle or whether he was looking for anything in particular. He did not remember why he used the word “fucking” while speaking to § 87(2)(b) and § 87(2)(b). After watching his BWC footage he stated that the profanity was not directed towards either of them and it was just part of the conversation. Lt. Daverin acknowledged that a business card was required to be provided to § 87(2)(b) and § 87(2)(b) at the conclusion of this incident. He did not remember whether he had business cards on him that day. He did not provide a business card to either of them and did not know why.

PO Rodriguez (BR 03) and PO Escobar (BR 05) did not know why Lt. Daverin instructed them to take § 87(2)(b) out of the vehicle or why Lt. Daverin instructed § 87(2)(b) to exit the vehicle. They did not notice any violations or contraband that made them believe it was necessary to take § 87(2)(b) and § 87(2)(b) out of the vehicle, but believed that Lt. Daverin saw something that made him believe it was necessary. They did not know what happened between Lt. Daverin and § 87(2)(b) on the passenger side of the vehicle. They were unaware that Lt. Daverin frisked § 87(2)(b) and did not know whether he searched § 87(2)(b). They did not know why Lt. Daverin frisked § 87(2)(b) as they did not fear for their safety and did not believe that either § 87(2)(b) or § 87(2)(b) were armed with a weapon. They did not see any bulges on either § 87(2)(b) or § 87(2)(b) indicative of a weapon or firearm. They did not know why Lt. Daverin searched the vehicle. They did not see any contraband themselves which would justify a vehicle search. Neither of them mentioned seeing or knowing anything about an open container of alcohol.

Stop reports were not generated regarding this incident (BR 18).

NYS Vehicle Traffic Law §1227 (BR 07) states that the possession of an open container containing an alcoholic beverage in a motor vehicle located upon a public highway is prohibited. Any operator or passenger violating this section shall be guilty of a traffic infraction.

Patrol Guide Procedure 212-11 (BR 08) states that a level 3 encounter is any encounter between a civilian and a uniformed member of the service in which a reasonable person would not feel free to disregard the officer and walk away. If an officer has reasonable suspicion that an individual has committed a crime, they may conduct a level 3 stop and detain the person for the purpose of conducting a criminal investigation.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

As per People v. De Bour, 40 N.Y.2d 210 (BR 09), if a police officer develops a reasonable suspicion that a person is armed and dangerous, the officer may frisk the person for a deadly weapon. Reasonable suspicion that a person is armed and dangerous may arise from the officer's observations or the facts and circumstances of the encounter including, reasonable suspicion that the suspect has committed, is committing, or is about to commit a violent crime, or an observation of something on the person that the officer reasonably suspects is a weapon.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unable to Determine**.

As per People v. Boykin, 188 A.D.3d 1244 (BR 10), if an officer observes an open container of alcohol inside of a vehicle on a public road, in violation of VTL §1227, they are justified in entering and searching the vehicle for additional open containers of alcohol.

It is undisputed that Lt. Daverin observed an open container of alcohol in the back seat of § 87(2)(b) vehicle. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **Within NYPD Guidelines**.

Patrol Guide Procedure 200-02 (BR 11) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

According to DCT case No. 2018-18951 (BR 12), officers have a responsibility to act with decorum in their interactions with civilians, though certain situations where profane remarks are made during a stressful or chaotic situation do not constitute misconduct.

Allegations F and G were not alleged and are being pled based on BWC footage. During the incident, § 87(2)(b) and § 87(2)(b) were compliant and spoke calmly with the officers. At the time Lt. Daverin used the profanity, he already confirmed that § 87(2)(b) and § 87(2)(b) did not have any weapons or contraband on them or in their vehicle and he was explaining that he was letting them go. § 87(2)(g)

It is therefore recommended that **Allegations F and G** be **Substantiated**.

Administrative Guide 304-11 (BR 13) states that when an officer conducts a level three stop, conducts a frisk, or searches a person's vehicle, none of which results in an arrest being made or summons being issued, then the officer must offer a business card to the person in a professional manner upon the conclusion of the law enforcement activity.

Allegations H and I were not alleged and are being pled based on BWC footage. § 87(2)(g)

It is therefore recommended that **Allegations H and I** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) (BR 19) and § 87(2)(b) (BR 20) have been a party.
- Lieutenant Henry Daverin has been a member of service for 15 years and has been a subject in 36 CCRB complaints and 135 allegations, of which 15 were substantiated:
 - 202003636 involved a substantiated allegation of a discourtesy against Lt. Daverin. The Board recommended command discipline A and the NYPD imposed command discipline A.
 - 202003055 involved a substantiated allegation of a discourtesy against Lt. Daverin. The Board recommended command discipline B and the NYPD imposed no penalty.
 - 202002855 involved substantiated allegations of physical force, a threat of force, and a discourtesy against Lt. Daverin. The Board recommended charges and the NYPD has not yet imposed a penalty.
 - 202002726 involved a substantiated allegation of an unlawful arrest against Lt. Daverin. The Board recommended charges and the NYPD has not yet imposed a penalty.
 - 202001798 involved a substantiated allegation of a failure to provide an RTKA card against Lt. Daverin. The Board recommended command discipline A and the NYPD imposed no penalty.
 - 201911006 involved substantiated allegations of a stop, frisk, and discourtesy against Lt. Daverin. The Board recommended command discipline B and the NYPD imposed command discipline B.
 - 201604699 involved a substantiated allegation of an entry and search against Lt. Daverin. The Board recommended command discipline B and the NYPD imposed no penalty.
 - 201502623 involved substantiated allegations of a frisk, vehicle search and refusal to provide name and shield number against Lt. Daverin. The Board recommended command discipline A and the NYPD imposed command discipline A.
 - § 87(2)(g)
- Police Officer Ramaury Rodriguez has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Sebastian Escobar has been a member-of-service for seven and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- As of November 2, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 21).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: _____ 16 _____

Investigator:	_____ Inv. Tsigel Signature	_____ Investigator Edward Tsigel Print Title & Name	_____ 8/4/2023 Date
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Squad Leader:	_____ Patrick Yu Signature	_____ IM Patrick Yu Print Title & Name	_____ 08/07/2023 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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